

Sri Susil Ch. Guria vs Smt. Putul Guria on 4 December, 2014

Author: Sanjib Banerjee

Bench: Sanjib Banerjee

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C.O. 3832 of 2014

Sri Susil Ch. Guria

Vs.

Smt. Putul Guria

Mr. Debasis Sur

Mr. S. Mukherjee

..for the Petitioner

The grievance of the petitioning husband is that the trial court has arbitrarily directed payment of Rs.10,000/- per month as alimony pendente lite despite the husband paying maintenance to the wife and children under Section 25 of the Criminal Procedure Code.

The wife had alleged in her application that the husband had an income of Rs.30,000/- and the wife claimed alimony pendente lite at the rate of Rs.20,000/- per month. In the written objection filed by the husband, he denied the contents of the application under Section 24 of the Hindu Marriage Act, 1955 but did not specifically deal with the allegation as to his income.

It is now judicially recognised that when a figure as to income is suggested by the wife in an application for alimony pendente lite, the husband should specifically deal with the same and indicate the extent of his income. The written objection of the husband was singularly lacking in such aspect. As a consequence, it was open to the trial court to draw an adverse inference against the husband and decide the matter.

There does not appear to be any error or irregularity in the procedure adopted by the trial court or in the order impugned dated November 12, 2014, particularly since the monthly sum of Rs.10,000/- to be paid by the husband will include the amount being paid under orders passed in the criminal proceedings.

C.O. 3832 of 2014 is dismissed.

There will be no order as to costs.

Urgent certified website copies of this order, if applied for, be made available to the parties upon compliance of the requisite formalities.

(Sanjib Banerjee, J.)